

Adriel Rodriguez v. Sierra Vista Regional Medical Center, et al., 24CV-0659

Hearing: Motion to Quash Subpoena

Date: August 19, 2026

Adriel Rodriguez, by and through his guardian ad litem, Judith Hernandez (Plaintiff) filed this action against the hospital and medical doctors who treated him after a traumatic motor-vehicle collision. Plaintiff alleges that Leanne Buckner, M.D. (Dr. Buckner) and other providers failed to timely recognize and treat a serious vascular injury, causing catastrophic and permanent injuries. Plaintiff alleges that Sierra Vista Regional Medical Center (Sierra Vista) was negligent in failing to ensure physician credentialing, supervision, monitoring, retention, and patient safety.

Before the Court is Dr. Buckner's motion to quash a subpoena issued by Plaintiff to the State of California Medical Board's Discipline Coordination Unit (Medical Board) seeking records concerning all accusations and charges and any and all Decisions/Orders or legal findings regarding Dr. Buckner. In opposition to the motion, Plaintiff contends that the subpoena seeks communications between Sierra Vista and the Medical Board that may show what Sierra Vista knew, when it knew it, whether it received information concerning Dr. Buckner's practice, and what the hospital did or failed to do in response. Plaintiff agrees to significantly limit the scope of the subpoena to satisfy Dr. Buckner's objections.

The proposed, narrowed production seeks (1) Public Medical Board records concerning Case No. 800-2020-069877; (2) nonprivileged communications between the Medical Board and Sierra Vista concerning Dr. Buckner's license, competence, privileges, restrictions, monitoring, or ability to practice safely; (3) nonprivileged communications concerning the Board's review of Plaintiff's March 4, 2022 treatment; and (4) Records in the Board's possession, custody, or control—not hospital records that should be sought from Sierra Vista itself. (Opposition, p. 4, lns. 6-16.)

1. Legal Standard Motion to Quash Subpoena

Code of Civil Procedure section 1987.1(a) provides that if a subpoena requires the production of documents, electronically stored information, or other things, the court "may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person."

2. Discussion

Dr. Buckner argues that the alleged events giving rise to the Medical Board's accusation and investigation occurred before Dr. Buckner treated Plaintiff and are therefore irrelevant. The Court disagrees. The events occurred one and one-half years before Plaintiff's accident in one case and

six months before in another. These time periods do not render the requested information irrelevant, and the requests are limited to public and non-privileged information.

As further protection of Dr. Buckner's and third-party privacy Plaintiff submits the following:

- Limiting production to defined subject matter and dates;
 - Excluding unrelated Board matters;
 - Redacting third-party identifying information;
 - Excluding confidential patient information;
 - Excluding Board deliberations and investigative work product;
 - Requiring a privilege log or categorical description of withheld material;
 - Entering a protective order; and
 - An in-camera review where necessary.
- (Opposition, p. 5, lns. 12-22.)

The Court finds these measures sufficient.

Plaintiff does not seek protected hospital peer-reviewed deliberations in violation of Evidence Code section 1157 and submits that the subpoena will be modified to expressly exclude:

- Unrelated Medical Board accusations, complaints, or investigations;
- Criminal or personal records unrelated to licensure, professional competence, or hospital notice;
- Records not maintained by the Medical Board;
- Hospital credentialing files, peer-review minutes, and peer-review deliberations;
- Internal Board investigative work product;
- Board attorney-client communications;
- Board deliberative materials;
- Unrelated patient medical information;
- Unredacted names or identifying information of third-party witnesses where not necessary;
- Depositions, discovery, and trial transcripts from this civil action; and
- Documents that cannot be identified with reasonable particularity.

Dr. Buckner argues the subpoena is invalid because it names Plaintiff's attorney as the deposition officer in violation of Code of Civil Procedure section 2025.320, subdivision (a). Plaintiff agrees to issue an amended subpoena naming an independent qualified deposition officer and new production date in conformance with Judicial Council Form SUBP-010. (Opposition, p. 13, lns. 1-4.)

3. Sanctions

Dr. Buckner brings her motion pursuant to Code of Civil Procedure section 1987.1 but seeks sanctions pursuant to Code of Civil Procedure section 2024.410. (Motion, p. 2, lns. 3-9; p. 4, lns. 27-28.) Dr. Buckner argues she was not required to meet and confer before moving to quash the

subpoena. (Motion, p. 2, Ins. 11-15.) Code of Civil Procedure section 2024.410, subdivision (c) expressly states that a motion to quash must be accompanied by a meet and confer declaration. While the Declaration of Laura Cota, Esq., was filed with the motion, it does not evidence sufficient meet and confer discussions. The objections to the subpoena are terse and there is no description of the topics discussed in a meet and confer telephone call between counsel. Once a more complete explanation of Defendant's objections to the subpoena was presented in the moving papers, Plaintiff agreed to substantially narrow the subpoena and satisfy the objections.

The Court finds Plaintiff acted with substantial justification.

4. Ruling

Dr. Buckner's request to quash the subpoena is denied, but the subpoena must be modified, reissued by Plaintiff with an appropriate deposition officer and production date, and limited to the following: (1) Public Medical Board records concerning Case No. 800-2020-069877; (2) Nonprivileged communications between the Medical Board and Sierra Vista from January 1, 2019 through March 4, 2022, concerning Dr. Buckner's license, restrictions, competence, privileges, monitoring, prescribing practices, recordkeeping, or ability to practice safely; and (3) Nonprivileged communications concerning the Medical Board's review of Dr. Buckner's treatment of Plaintiff at Sierra Vista on March 4, 2022, from that date through December 19, 2024.

Plaintiff must obtain a protective order, by stipulated order or motion, to protect confidential and sensitive documents in the case, including documents subject to the subpoena.

The subpoena must expressly exclude the following: (1) unrelated disciplinary matters; (2) personal records; (3) Board investigative work product; (4) Board deliberations; (5) attorney-client communications; (6) hospital peer-review materials; (7) unrelated patient information; (8) records not in the Medical Board's possession, custody, or control.

Redactions may be made to protect privileges and confidentiality, but responsive documents withheld must be sufficiently described in a privilege log.

Dr. Buckner's request for sanctions is denied.